

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 6

Honorable Rafael Sivilla-Jones, Presiding

191 North First Street, San Jose, CA 95113

Telephone: (408) 882-2160

September 17, 2026

9:00 and 9:01 A.M.

RECORDING COURT PROCEEDINGS IS PROHIBITED

ORAL ARGUMENT

Before 4:00 PM today you must notify the:

- (1) Court by calling (408) 808-6856 and
- (2) Other side by phone or email that you will appear at the hearing to contest the tentative

If you fail to so notify the court or opposing side, the Court will not hear argument, and the tentative ruling will be adopted. (California Rule of Court 3.1308(a)(1) and Local Rule 8.E.)

REMOTE APPEARANCES

Phone only appearances are PROHIBITED. In-person appearances are preferred.

For necessary virtual appearances, you **must use video** and follow **Civil Local Rule 5**.

To access the courtroom, click or copy and paste this link into your internet browser and scroll to

Department 6: <https://santaclara.courts.ca.gov/online-services/remote-hearings>

LINE	CASE NO.	CASE TITLE	TENTATIVE RULING
1	21CV379107	Xingchuan Pei vs. Fangfei Liu	Defendant moves this court to set aside default judgment. Defendant asserts that he was not served this complaint because he had moved at the time of service from the address that is shown on the proof of service filed August 18, 2021. The proof of service was dated for April 14, 2020—an error since the case was not filed until April 5, 2021. Defendant asserts that he moved from the Ramona residence which was where the process server claims he was served in August 2020. Defendant asserts that he did not receive notice of judgment until he received a notice of levy on April 8, 2026. He then filed this motion on April 14, 2026. There is no opposition to this motion. Defendant's motion is GRANTED. CASE TO BE HEARD AT 10:30. IF CONTESTED, CASE WILL NEED TO BE CONTINUED
9:00 <u>2</u>	25CV461753	Discover Bank vs. Dawn Hathaway	Case is off calendar.
9:00 <u>3</u>	25CV467677	Zou Hanshu vs. Hao Chen, et.al.	See below CASE TO BE HEARD AT 10:30. IF CASE IS CONTESTED, WILL NEED TO BE CONTINUED FOR ORAL ARGUMENT.
9:00 <u>4</u>	25CV474036	Zarghami vs. Falaha	See below CASE TO BE HEARD AT 10:30. IF CASE IS CONTESTED, CASE WILL BE CONTINUED FOR ORAL ARGUMENT.
9:00 5	26CV489051	Citibank vs. Jeannie Chan	See below. CASE TO BE HEARD AT 10:30. IF CASE IS CONTESTED, CASE WILL BE CONTINUED FOR ORAL ARGUMENT.
9:00 6	26CV489556	JAMS Bakery vs. SSH Homestead Property	Defendant petitions this court to compel plaintiff to respond to a request for production of documents. Defendant served plaintiff with a request for production of documents. Plaintiff never responded. Plaintiff has not filed any objections to Defendant's current petition. Defendant's petition is GRANTED. CASE TO BE HEARD AT 10:30. IF CASE IS CONTESTED, CASE WILL BE CONTINUED FOR ORAL ARGUMENT.
9:00 <u>7</u>	26CV490068	Barry Rowe vs CMJ Properties	Defendant petitions this court to compel Plaintiff to answer Form interrogatories set one and for \$990 in monetary sanctions. Defendant served Plaintiff with form interrogatories. Plaintiff never responded. Plaintiff has filed no objections to this petition. Defendant's petition is GRANTED—Plaintiff is ordered to respond within ten days of the filing of the order. Defendant's motion for monetary sanctions of \$990 is GRANTED. CASE TO BE HEARD AT 10:30. IF CASE IS CONTESTED, CASE WILL BE CONTINUED FOR ORAL ARGUMENT.
9:00 <u>8</u>	26CV490111	Zhang Ping Ye vs. Board of Directors of Summerton Condominium Association	Motion is off calendar.

9:00 9	26CV492358	Raymond Avina et.al. vs. Sharon Armstrong	Plaintiff moves this court for trial preference under CCP 36(a). Defendant argues that Plaintiff fails to meet both elements of the code. Plaintiff is over 70 years old. Defendant concedes the first element that party has a substantial interest in the action as a whole. Defendant argues that Plaintiff has not presented evidence that the "health of the party is such that a preference is necessary to prevent prejudicing the party's interest..." (CCP 36(a)). The court agrees that such evidence has not been forthcoming. Plaintiff's motion is DENIED. CASE TO BE HEARD AT 10:30. IF CASE IS CONTESTED, CASE WILL BE CONTINUED FOR ORAL ARGUMENT.
9:01 1	23CV412865	Onemain Financial Group vs. Ajanay Walker	Defendant moves for exemption from wage garnishment. Plaintiff objects. Court needs oral argument to determine amount of wage garnishment. CASE TO BE HEARD AT 10:30. THIS CASES WILL BE CONTINUED.
	21CV384369	Comerica Bank vs. Stanley McIntyre	Defendant moves for exemption from wage garnishment. No objection was filed. Defendant's motion is GRANTED. CASE TO BE HEARD AT 10:30. IF CASE IS CONTESTED, CASE WILL BE CONTINUED.

Calendar Line 3

Case Name: *Xiaowei Guan et al. v. Lu Zhipeng et al.*

Case No.: 25CV467677

Plaintiff Xiaowei Guan ("Guan") moves for leave to amend to file a second amended complaint (the "SAC"). According to Guan, the proposed SAC "contains a number of minor, non-substantive word changes and replacements"; factual allegations supporting causes of action against Defendant Jia Sun ("Sun"); changes made regarding Defendant Hao Chen ("Chen") and Chen's activities related to Defendants Skyline Development, Inc. ("Skyline") and Lusso, Inc.; separates the first amended complaint's (the "FAC") first cause of action into two causes of action; and removes Defendant Bank of America Corporation and the related twelfth cause of action. (Memorandum of Points and Authorities in Support of Motion for Leave to Amend ("MPA"), pp. 3:26-4:16.) Chen opposes Guan's motion.

The court GRANTS Chen's request for judicial notice of the original complaint filed in this matter, Chen's demurrer to this complaint, the FAC, and Chen's demurrer to the FAC. (Request for Judicial Notice in Support of Motion for Leave to Amend, p. 2:4-9; Evid. Code, § 452, subd. (d) ["Judicial notice may be taken of . . . [r]ecords of (1) any court of this state . . ."].)

Code of Civil Procedure section 473 "permits the trial court in its discretion to allow amendments to pleadings in the furtherance of justice. Ordinarily, courts should 'exercise

liberality’ in permitting amendments at any stage of the proceeding.” (*Hulsey v. Koehler* (1990) 218 Cal.App.3d 1150, 1159, internal citations omitted.) “While a motion to permit an amendment to a pleading to be filed is one addressed to the discretion of the court, the exercise of this discretion must be sound and reasonable and not arbitrary or capricious. And it is a rare case in which a court will be justified in refusing a party leave to amend his pleadings so that he may properly present his case. If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion.” (*Morgan v. Superior Court of Los Angeles County* (1959) 172 Cal.App.2d 527, 530 (*Morgan*), internal citations and quotation marks omitted.) Prejudice exists where the amendment would require delaying the trial, result in the loss of critical evidence, add costs of preparation, or increase the burden of discovery. (*Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 486-488.)

First, the court is not persuaded by Chen’s argument that the proposed SAC fails to state a cause of action. (Opposition to Motion for Leave to Amend Answer (“Opposition”), pp. 12:7-14:14.) While Chen cites precedent indicating that denial of leave to amend is appropriate where the proposed amended pleading fails to state a cause of action, the court ultimately finds that Chen’s demurrer-type arguments regarding the sufficiency of the allegations are inappropriate on a motion for leave to amend. (*Id.* at p. 12:8-12, citing *Foroudi v. The Aerospace Corp.* (2020) 57 Cal.App.5th 992, 1000-1001; see *Morgan, supra*, 172 Cal.App.2d at p. 530 “[I]t is a rare case in which ‘a court will be justified in refusing a party leave to amend his pleadings so that he may properly present his case.’ If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend . . .”].)

Second, the court is not persuaded by Chen’s sham pleading doctrine argument. (Opposition, pp. 10:25-12:6.) The court reiterates that courts generally do not consider the validity of proposed amendments to a pleading on a motion for leave to amend. (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048 “[T]he preferable practice would be to permit the amendment and allow the parties to test its legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings.”], internal citation and quotation marks omitted; *Atkinson v. Elk Corp.* (2006) 109 Cal.App.4th 739, 760-761 [the “better course of action” is to allow amendment “and then let the parties test its legal sufficiency in other appropriate proceedings.”], internal citation omitted.)

Third, the court is not persuaded by Chen’s argument that Guan’s motion omits “the required facts showing due diligence and a reasonable investigation.” (Opposition, p. 8:5-6.) In support of this argument, Chen cites authority discussing the delayed discovery rule as it applies to statutes of limitation arguments. (*Id.* at p. 7:14-25 [“Borrowing from related cases discussing the ‘discovery rule’ and statutes of limitations . . .”], citing *Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 808-809.)¹ Chen, however, does not provide the court with any authority

¹ Chen also argues that the court may consider “such factors as whether the pleading states facts which could have been pleaded earlier, and whether the moving party has established a

indicating that this authority also applies to a motion for leave to amend under Code of Civil Procedure section 473. Relatedly, Chen does not provide the court with any authority that would require counsel for Guan to provide “admissible, personal knowledge as to *who* supposedly ‘discovered’ ‘an email or text,’ and how they did so, and why and how they could not have discovered it sooner if a reasonable investigation been performed. No email or text is appended to the moving papers, and none has ever been identified in discovery despite multiple sets which would have elicited it.” (Opposition pp. 8:14-9:12, emphasis original.)

Chen cites California Rules of Court, rule 3.1324(b), which does require a declaration accompanying a motion for leave to amend that states when the facts giving rise to the amended allegations were discovered and the reasons why the request for amendment was not made earlier. (Opposition, p. 7:9-13; Cal. Rules of Court, rule 3.1324(b)(3)-(4).) The Declaration of David R. Socher (the “Socher Declaration” or “Socher Decl.”) states that a “new allegation was added . . . describing Defendant Hao Chen’s promise to Plaintiff Xiaowei Guan to sign a separate agreement using Hao Chen’s personal real property and/or to sell his own personal property in order to repay Loan #2, discovered in an email or text from Defendant Hao Chen to Plaintiff Xiaowei Guan after the FAC had been filed.” (Socher Decl., ¶ 11; see also *ibid.* [“Additional factual allegations were added at page 10, paragraphs 47, 48 and 49 that Defendants Hao Chen and Lusso, Inc. used employees of Lusso, Inc. to set-up and operate the Valore, Inc. entity; and for a constructive trust over any Valore, Inc. assets improperly transferred to, or held by Defendants Hao Chen and/or Lusso, Inc. This information was discovered after the FAC was filed.”].) The Socher Declaration further states that Socher filed the FAC in December 2025, Socher realized in January 2026 that Socher had “inadvertently” omitted alleged facts regarding Sun from the FAC, Socher began drafting the proposed SAC in April 2026, “communication was sometimes slow” between Guan and Socher because Guan is a “native Chinese speaker” and Socher does not speak Chinese, Socher had completed a draft of the proposed SAC by June 2026, in June 2026 the court continued the hearing on Chen’s demurrer to the FAC, and Socher filed the present motion for leave to amend in August 2026 following communications between counsel. (Socher Decl., ¶¶ 4-10, 12-14.) The court finds that these statements comply with California Rules of Court, rule 3.1324(b)(3) and (4).

Fourth, Chen argues that Guan has failed to justify any delay associated with Guan seeking leave to amend. (Opposition, pp. 9:22-10:24.) Chen contends that Guan is “trying to continually move the target for Chen which the California courts agree should not be tolerated. There is no plausible, credible explanation for Plaintiff’s vacillation between allegations in avoidance of Chen’s demurrers.” (*Id.* at p. 10:21-24.) According to Chen, unreasonable “delay may be found where a plaintiff seeks leave to amend only after the defendant files a motion challenging the complaint, which the proposed amendment seeks to avoid based on alleged facts

reasonable excuse for the delay.” (Opposition, p. 7:21-25, citing *Emerald Bay Community Association v. Golden Eagle Ins. Corp.* (2005) 130 Cal.App.4th 1078, 1097 (*Emerald*).) In *Emerald*, the plaintiff filed a “*posttrial* motion to amend the complaint.” (*Emerald*, *supra*, 130 Cal.App.4th at p. 1097, emphasis added.)

known to the plaintiff.” (*Id.* at p. 10:8-16, citing *Champlin/GEI Wind Holdings, LLC v. Avery* (2023) 92 Cal.App.5th 218, 224 (*Champlin*), *Melican v. Regents of Univ. of California* (2007) 151 Cal.App.4th 168, 182 (*Melican*).)

Ultimately, the court is not persuaded by this argument. *Champlin*, and *Melican* are distinguishable. In *Champlin*, the Court of Appeal held that a “party cannot avoid summary judgment by relying on theories that are not alleged in the pleadings.” (*Champlin, supra*, 92 Cal.App.5th at p. 224, internal citation omitted.) Similarly, the Court of Appeal in *Melican* held that the plaintiffs “never sought to add the claim until they made their oral request during the summary judgment hearing over five years later. . . . It would be patently unfair to allow plaintiffs to defeat [the defendant’s] summary judgment motion by allowing them to present a ‘moving target’ unbounded by the pleadings.” (*Melican, supra*, 151 Cal.App.4th at p. 176.) Here, Guan filed the initial complaint in this matter roughly fifteen months ago, the Socher Declaration states that the newly alleged facts related to Chen were discovered after the FAC was filed, no summary judgment or adjudication motion is pending, and it appears that a trial date has yet to be scheduled.

Finally, Chen argues that Chen will suffer prejudice. (Opposition, pp. 14:15-15:1.) The court is not persuaded by Chen’s argument that leave to amend is prejudicial because Chen “would be effectively saddled with the burden of trying to defend claims properly made only as against Skyline. More than 15 months have passed which means that key evidence in the possession custody or control [sic] of Skyline has more than probably lost, along with the memories of witnesses.” (*Id.* at p. 14:24-15:1.) This case is roughly fifteen months old, it appears that no trial date has been set, and the court ultimately finds that the public policy favoring liberally allowing amendments to pleadings weighs in favor of granting the motion. The fact that the partes will need to continue litigating this case and conduct additional discovery is insufficient to show prejudice.

The court GRANTS Guan’s motion for leave to file the proposed SAC. Guan shall file and serve the proposed SAC within 10 days of this order.

Calendar Line 4

Case Name: *Zarghami v. Falaha*

Case No.: 25CV474036

According to the allegations of the first amended complaint (“FAC”), plaintiff Mohamad H. Zarghami (“Plaintiff”) and defendant Sara Falaha (“Defendant”) were married and share a minor child, and are parties in the Family Law matter *Falaha v. Zarghami* (Super. Ct. County of

Santa Clara, 2024, No. 24FL002138). (See FAC, ¶ 6.) Between May 2025 and the March 5, 2026 filing of the FAC, Defendant recorded no less than twelve confidential communications without his consent. (See FAC, ¶ 20.) Defendant also monitored Plaintiff's location through a GPS tracker, and through his laptop, documenting where he went and where he stayed overnight, without his consent and when Plaintiff was not with his daughter pursuant to their custody agreement. (See FAC, ¶ 21.) Defendant has threatened to release Plaintiff's private information and photographs and videos of Plaintiff to their community for the purpose of shaming him. (See FAC, ¶ 22.) On August 25, 2025, Plaintiff was granted a domestic violence restraining order ("DVRO") against Defendant for the above acts. (See FAC, ¶ 23.)

On March 5, 2026, Plaintiff filed the FAC against Defendant, asserting the following causes of action:

- 1) Statutory damages for invasion of privacy pursuant to Penal Code sections 637.2;
- 2) Invasion of privacy;
- 3) intentional infliction of emotional distress; and,
- 4) declaratory relief/permanent injunction.

Defendant specially moves to strike the FAC pursuant to Code of Civil Procedure section 425.16.

I. DEFENDANT TAAGHOL'S SPECIAL MOTION TO STRIKE THE FAC PURSUANT TO CODE OF CIVIL PROCEDURE SECTION 425.16

In *Equilon Enterprises, LLC v. Consumer Cause, Inc.* (2002) 29 Cal.4th 53, the California Supreme Court established the trial court's duty in ruling on an anti-SLAPP motion to strike:

Section 425.16, subdivision (b)(1) requires the court to engage in a two-step process. First, the court decides whether the defendant has made a threshold showing that the challenged cause of action is one arising from protected activity. The moving defendant's

burden is to demonstrate that the act or acts of which the plaintiff complains were taken ‘in furtherance of the [defendant]’s right of petition or free speech under the United States or California Constitution in connection with a public issue,’ as defined in the statute. [Citation.] If the court finds [that defendant has made its threshold showing], it then determines whether the plaintiff has demonstrated a probability of prevailing on the claim. Under section 425.16, subdivision (b)(2), the trial court in making these determinations considers ‘the pleadings, and supporting and opposing affidavits stating the facts upon which the liability or defense is based.’

(*Id.* at 67.)

“[I]n order to establish the requisite probability of prevailing [citation], the plaintiff need only have ‘stated and substantiated a legally sufficient claim.’” (*Navellier v. Sletten* (2002) 29 Cal. 4th 82, 88, quoting *Briggs v. Eden Council for Hope & Opportunity* (1999) 19 Cal. 4th 1106, 1123.) “Put another way, the plaintiff ‘must demonstrate that the complaint is both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the plaintiff is credited.’” (*Id.* at 88-89, quoting *Wilson v. Parker, Covert & Chidester* (2002) 28 Cal.4th 811, 821.) “In deciding the question of potential merit, the trial court considers the pleadings and evidentiary submissions of both the plaintiff and the defendant (§ 425.16, subd. (b)(2)); though the court does not weigh the credibility or comparative probative strength of competing evidence, it should grant the motion if, as a matter of law, the defendant’s evidence supporting the motion defeats the plaintiff’s attempt to establish evidentiary support for the claim.” (*Wilson v. Parker, Covert & Chidester* (2002) 28 Cal.4th 811, 821.) “To show a likelihood of success, ‘[t]he plaintiff’s showing of facts must consist of evidence that would be admissible at trial.’” (*Wong v. Jing* (2010) 189 Cal.App.4th 1354, 1368.) “The plaintiff may not rely on the allegations in the complaint or assertions in a declaration based on information and belief.” (*Id.*)

Defendant fails to make a threshold showing that the complaint arises from protected activity.

Defendant asserts that the acts complained of—her recording of conversations, tracking of Plaintiff’s location, hiring of a private investigator and surveillance of Plaintiff, obtaining of intimate photos of Plaintiff and submission of these items—are protected activity pursuant to Code of Civil Procedure section 425.16, because they “concern conduct during the course of

litigation.” (Def.’s memorandum of points and authorities in support of special motion to strike the FAC (“Def.’s memo”), p.9:12-18.) While Defendant does not cite to which subdivision of subdivision (e) the alleged acts fall under, she largely relies on *Huntingdon Life Sciences, Inc. v. Stop Huntingdon Animal Cruelty USA, Inc.* (2005) 129 Cal.App.4th 1228. In *Huntingdon, supra*, the defendant encouraged demonstrations against animal testing and supported “those who choose to operate outside the confines of the legal system” on its website, and as a consequence, defendant’s activists vandalized the plaintiff’s employee’s home and her husband’s car. (*Huntingdon, supra*, 129 Cal.App.4th at pp.1240-1245.) The *Huntingdon* court determined that the causes of action arose from speech that took place in a public forum and concerned “animal testing... an area of widespread public concern and controversy, and the viewpoint of animal rights activists contributes to the public debate” and as “Plaintiffs do not assert that either the public interest or public forum criterion is unsatisfied,” it concluded that the causes of action arose from protected activity pursuant to section 425.16, subdivisions (e)(3) and (e)(4). (*Id.* at pp.1246-1247 (also stating that “[t]he ‘public interest’ component of section 425.16, subdivision (e)(3) and (4) is met when ‘the statement or activity precipitating the claim involved a topic of widespread public interest,’ and ‘the statement ... in some manner itself contribute[s] to the public debate’... [c]ommenting on a matter of public concern is a classic form of speech that lies at the heart of the First Amendment... [s]tatements on SHAC USA’s Web site are accessible to anyone who chooses to visit the site, and thus they ‘hardly could be more public’”).)

Here, the alleged acts are neither statements made in a public forum nor commenting on a matter of public concern, nor contributing to the public debate on such a matter. *Huntingdon* is inapposite.

Defendant instead concludes that she “was collecting evidence for the present litigation by hiring a private investigator and exercising rights per a stipulated order” and thus demonstrates that the causes of action arise from protected activity. However, the protective order does not authorize much of the alleged conduct. With regards to the alleged recording of conversations, the stipulation’s only mention of recording is with regards to the security camera in the child’s bedroom in which it states that “[i]f the camera has an option to block audio recording and/or transmission, then that feature must be activated at all times without exception... [and i]f the camera does not have an option to block audio, then Respondent may place a piece of gum or equivalent on the microphone without causing any visual impairment or video limitation to block the audio” (Kirchick decl. in support of special motion to strike, exh. A (“stipulation”), ¶ 4, subpara. b), and with “conduct during pickups and dropoffs” (*id.* at ¶ 15). The stipulation neither concerns the monitoring of who might come in and out of Plaintiff’s home, nor surveillance with visibility into Plaintiff’s home, tracking of visitors and activity inside when Plaintiff did not have custody of the daughter, nor monitoring of Plaintiff’s location through a GPS tracker or Plaintiff’s laptop when not with his daughter, nor the release of private information, photographs and videos of Plaintiff for the purpose of shaming him. The stipulation does state that “[b]oth parties shall keep location tracking active on their phones and share access with the other party at all times”; however, it also states that “[t]he Parties conduct towards each

other... shall be peaceful and respectful at all times... includ[ing] not accessing each other's personal and private information... [n]either party shall access remotely, electronically, or otherwise the other's cell phone... or other accounts without prior written consent or otherwise stated in this agreement.” (*Id.* at ¶ 2, subparas. b-c, ¶ 9.) Defendant's other evidence in support of the motion are text messages between Plaintiff, a supplemental declaration regarding coercive control, religious pressure and boundary violations following the stipulation, a statement regarding SIM card, device functionality and Wi-Fi connectivity, and a discussion regarding the stipulation; this evidence does not demonstrate that the alleged acts arise from protected activity. Defendant's evidence submitted with her motion fails to meet her threshold burden to demonstrate that the causes of action arise from protected activity.

Subsequent to filing her motion, Defendant filed her own supplemental declaration, denying the allegations and stating that “[t]he only reason that [she] hired a private investigator was to secure evidence that [she] intended to use to present [her] case at trial in this matter.” (Def.'s supplemental decl. in support of special motion to strike, ¶ 3.) As Defendant states that she was attempting to obtain evidence to eventually present her case at trial, this neither concerns any written or oral statement or writing made before a judicial proceeding, nor any written or oral statement or writing made in connection with an issue under consideration or review by a judicial body, and thus cannot be an “act in furtherance of a person's right of petition” pursuant to Code of Civil Procedure section 425.16, subdivision (e)(1) or (e)(2). Nor is it a written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest pursuant to subdivision (e)(3).

Further, as previously stated, in her supplemental declaration, Defendant also denies most of the alleged acts. (*Id.* at ¶¶ 3-7 (stating “I never asked the private investigator to do anything illegal nor did I ask the private investigator to go inside Mr. Zarghami's home.... I never asked the private investigator to take inappropriate photographs or video of Mr. Zarghami.... I do not have intimate photographs of Mr. Zarghami and another woman in my possession, custody or control.... All of the photographs that my private investigator gave to me from Mr. Zarghami's residence were taken from outside of Mr. Zarghami's residence.... I do not intend to damage Mr. Zarghami's reputation.... I have not engaged in any unlawful conduct as to any of the allegations that Mr. Zarghami has made against me in his August 25, 2025 Request for Domestic Violence Restraining Order.... I do not concede that I have committed any illegal act and adamantly dispute that I have committed any illegal act.... I did not track Mr. Zarghami's location on his laptop without his consent.... I did not record any mediation sessions in this matter”).) The denial of the allegations is essentially a concession that the alleged acts do not constitute protected activity and does not in any event demonstrate that the allegations are not protected activity. (See *Malin v. Singer* (2013) 217 Cal.App.4th 1283, 1303-1304 (stating that “[a] showing that a defendant did not do an alleged activity is not a showing that the alleged activity is a protected activity... [e]ven if we were to accept Arazm and Singer's assertion that they are innocent of the criminal computer hacking and wiretapping allegations, their claim is ‘more suited to the second step of an anti-SLAPP motion’”); see also *Gerbosi v. Gaims, Weil, West &*

Epstein, LLP (2011) 193 Cal.App.4th 435, 446-447 (stating that “[a] showing that a defendant did not do an alleged activity is not a showing that the alleged activity is a protected activity... section 425.16 was not enacted to protect an attorney who allegedly hired an ‘investigator’ like Anthony Pellicano to wiretap telephones... [the] causes of action alleging that Gaims engaged in wiretapping activity do not fall within the protective ambit of the anti-SLAPP statute”); see also *Simmons v. Bauer Media Group USA, LLC* (2020) 50 Cal.App.5th 1037, 1046-1047 (stating that “section 425.16 cannot be invoked by a defendant whose assertedly protected activity is illegal as a matter of law and, for that reason, not protected by constitutional guarantees of free speech and petition... ‘it would eviscerate the first step of the two-step inquiry set forth in the statute if the defendant’s mere assertion that his underlying activity was constitutionally protected sufficed to shift the burden to the plaintiff to establish a probability of prevailing... where a defendant brings a motion to strike under section 425.16 based on a claim that the plaintiff’s action arises from activity by the defendant in furtherance of the defendant’s exercise of protected speech or petition rights, but either the defendant concedes, or the evidence conclusively establishes, that the assertedly protected speech or petition activity was illegal as a matter of law, the defendant is precluded from using the anti-SLAPP statute to strike the plaintiff’s action... [h]ere, Bauer concedes Mathews’s placement and use of the tracking device was illegal and not protected speech... [b]ut it insists it merely hired Mathews to take photographs, not illegally place a tracking device... [t]hat assertion, however, contradicts allegations in the first amended complaint that Bauer hired Mathews and LA Intelligence both to stake out the hospital during Simmons’s visit and to track and report on Simmons’s whereabouts... [t]his factual dispute goes to the merits of plaintiffs’ claims and is not relevant to the first prong of the anti-SLAPP inquiry”).) The principal thrust of the allegations of the FAC do not suggest any protected activity. (See *Baharian-Mehr v. Smith* (2010) 189 Cal.App.4th 265, 272 (stating that “we decide whether the challenged claims arise from acts in furtherance of the defendant’s right of free speech or right of petition under one of the four categories set forth in section 425.16, subdivision (e)... [i]n doing so, we ‘examine the principal thrust or gravamen of a plaintiff’s cause of action to determine whether the anti-SLAPP statute applies... [w]e assess the principal thrust by identifying ‘[t]he allegedly wrongful and injury-producing conduct... that provides the foundation for the claim’”).) Defendant fails to demonstrate that the FAC’s causes of action arise from protected activity.

Accordingly, Defendant’s special motion to strike the complaint is DENIED.

As Defendant fails to demonstrate that the alleged actions of which Plaintiffs complains were taken in furtherance of his “right of petition or free speech under the United States or California Constitution in connection with a public issue,” as defined in the statute, the Court need not determine whether Plaintiff has demonstrated a probability of prevailing on his claims.

Plaintiff shall prepare and submit a proposed final order consistent with this tentative ruling.

Calendar Line 5

Case Name: *Citibank, N.A. v. Chan*

Case No.: 26CV489051

On March 11, 2026, plaintiff Citibank, N.A. (“Citibank”) filed a complaint against defendant Jeannie Y. Chan (“Chan”), asserting a cause of action for breach of a credit card agreement. A proof of service filed on March 23, 2026 states that Chan was personally served on March 21, 2026. On April 13, 2026, Chan filed an answer to the complaint. On April 20, 2026, Chan filed a motion to quash service of the summons and complaint on the ground that the court lacks personal jurisdiction over her due to improper service of process.

“[I]t has long been the rule in California that a party waives any objection to the court’s exercise of personal jurisdiction when the party makes a general appearance in the action.” (*Roy v. Super. Ct. (Lucky Star Industries, Inc.)* (2005) 127 Cal.App.4th 337, 341; see also *Fireman’s Fund Ins. Co. v. Sparks Construction, Inc.* (2004) 114 Cal.App.4th 1135, 1145 (stating that “[a] general appearance operates as a consent to jurisdiction of the person, dispensing with the requirement of service of process, and curing defects in service... a general appearance can make up for a complete failure to serve a summons”).) “An answer, of course, is such an appearance, as is expressly made clear by [Code of Civil Procedure] section 1014: ‘A defendant appears in an action when the defendant answers, demurs, [or] files a notice of motion to strike.’” (*Roy, supra*, 127 Cal.App.4th at p.341; see also *Batchelor v. Finn* (1959) 169 Cal.App.2d 410, 423 (stating that “[t]he filing of an answer is a general appearance”); see also *Neihaus v. Super. Ct. (Vaillancourt)* (1977) 69 Cal.App.3d 340, 345 (stating that “if such a defendant appears by formally answering a complaint, such an appearance is a general appearance and confers

jurisdiction upon the court where none existed before”).) “It has been long established by decisions of the courts of this state that where a defendant makes a general appearance by the filing of an answer, demurrer, or certain motions, he submits himself to the jurisdiction of the court irrespective of an attempt in the pleading to disclaim such submission or limit the appearance.” (*Neihaus, supra*, 69 Cal.App.3d at p.345.)

Here, Chan filed her answer and subsequently filed a motion to quash. Chan’s answer constitutes a general appearance and thus waives any objection to the court’s exercise of personal jurisdiction. Chan’s motion to quash is DENIED.

Plaintiff Citibank shall prepare and submit a proposed final order consistent with this tentative ruling.